

The Hellenic Data Protection Authority convened in a Department composition following an invitation from its President via teleconference on Wednesday, November 8, 2023, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzalexis, due to the absence of the President of the Authority Konstantinos Menoudakos, and the alternate members of the Authority, Dimosthenis Bougioukas and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias, who, although duly summoned, were unable to attend due to impediments, as well as Georgios Kontis, an alternate member, as the rapporteur. Present without voting rights were Anastasia Tritaki, a legal expert, as assistant rapporteur, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into consideration the following:

With the complaint No. G/EIS/6500/27-04-2022, A complains before the Authority that B engaged in unlawful processing of his personal data. Specifically, A (hereinafter the complainant) states that he is a resident abroad and that following the death of his father, G, with whom he had no contact, during the search for the tax obligations of the deceased, he was informed by the Tax Office ... of Athens that a tax return (E1) for the year 2020 was submitted on 1-10-2021, namely, at 1-3 Kifisias Avenue, 11523 Athens. The complainant claims that the aforementioned return was submitted without him ever having provided any relevant instruction, while the respondent submitted it on his behalf, using his personal details, namely his name and tax identification number, designating him as the tax representative of the deceased. Furthermore, the complainant points out that there was no prior consent or notification regarding the above, as he was first informed about it on 17-02-2022, when he received a copy of the contested return from the Tax Office ... of Athens, following his application No.

G/EIS/7452/26-05-2022. Subsequently, the complainant sent an email through his lawyer on 20-4-2022 to the respondent, in order to inquire about how his personal details came to the respondent's knowledge, but did not receive a response.

The Authority, in the context of examining the above complaint, sent to the complainant the document G/EX/1281/26-05-2022, requesting him to inform whether, during the intervening period, he received a response from the respondent. In this regard, the complainant responded negatively with document G/EIS/7452/26-05-2022, and thereafter, the Authority sent to the respondent document G/EX/1303/30-05-2022, requesting clarifications regarding the matters contained in the complaint under examination.

In his responses No. G/EIS/7842/09-06-2022 and G/EIS/8286/27-06-2022 to the Authority, the respondent argued, among other things, that he is a professional accountant and that 15 years ago, the deceased G had entrusted him with the preparation and submission of his income tax returns (E1). In the context of fulfilling the above mandate, he prepared and submitted on 1-10-2021, namely after the death of his client, the income tax return for the year 2020, in order, as his client had stated, to avoid burdening his son. Furthermore, the respondent stated that since it was necessary to register the name and tax identification number of a certain living relative of the deceased client as his representative, he registered the above details of the complainant, as, to his knowledge, the complainant was the closest relative of his client at the time of his death, while the above details had come to his knowledge from the client.

****Translation of the Legal Document:****

While he was alive. The respondent also stated that he was unable to communicate with the complainant at the time of the submission of the contested income statement, as the latter resided abroad and had no means of communication with him. Finally, he pointed out that the contested personal details of the complainant, namely his full name and tax identification number (TIN), were disclosed exclusively to the Tax Office, a service where they were already known, and were not

disclosed to anyone else by him.

On June 24, 2022, the respondent communicated his response, reference number Γ/ΕΙΣ/7842/09-06-2022, to the Authority and to the complainant (see document reference number Γ/ΕΙΣ/8286/27-06-2022). In the supplementary memorandum, reference number Γ/ΕΙΣ/8343/28-06-2022, the complainant argued, among other things, that he did not maintain a relationship with his father, as his mother had sole custody since ..., while the complainant obtained a TIN only after the donation of real estate from his mother, who solely manages his tax affairs. Therefore, according to the complainant, his deceased father was not aware of any of his tax details, and consequently, both the deceased and the respondent did not know his TIN. Additionally, the complainant disputes the existence of an instruction from his father to the respondent, as no relevant documents were submitted, while previous income statements of his father were not co-signed by the respondent. In any case, as he pointed out, the instruction is terminated, unless otherwise specified, upon the death of the principal. Furthermore, the complainant considers the incorrect recording of the deceased's residential address on the income statement as an element of unlawful acquisition of his personal details.

Following the examination of the file's details, the Authority sent the summons for a hearing, reference number Γ/ΕΞ/3111/05-12-2022, to the respondent and the summons, reference number Γ/ΕΞ/3113/05-12-2022, to the complainant, in order to attend, via videoconference, a hearing before the Department of the Authority on Wednesday, December 14, 2022, at 10:30, regarding the discussion of the aforementioned complaint.

In an email to the Authority on the day of the meeting, the respondent requested a postponement of the discussion due to the inability of his attorney-in-fact to attend the aforementioned meeting. The President of the Department, after hearing the attorney-in-fact of the complainant, who did not object, accepted the request for postponement and scheduled the discussion of the case for a new date on Wednesday, December 21, 2022, for which the respondent was summoned with the Authority's reference number Γ/ΕΞ/3300/15-12-2022.

During the aforementioned meeting, which took place via videoconference, the complainant was represented by his attorney-in-fact Epameinondas Stylopoulos, and the respondent appeared in person, accompanied by his attorney-in-fact, Friksos Geralis. Both parties, after orally presenting their views, were given a deadline during this meeting to submit written memoranda by January 11, 2023, to further support their claims. Following this, the complainant timely submitted the memorandum, reference number Γ/ΕΙΣ/181/11-01-2023, and the respondent timely submitted the memorandum, reference number Γ/ΕΙΣ/176/11-01-2023.

During the above hearing and with the memorandum, reference number Γ/ΕΙΣ/181/11-01-2023, following the hearing, the complainant further elaborated on the claims he had previously made before the Authority and added, among other things, that by the submission of the tax declaration by the respondent using his data, without his consent or notification, he risked the creation of unknown debts against him, administrative and/or criminal. Furthermore, the complainant disputed the respondent's claim of unfamiliarity with technology, a reason the respondent presented during the hearing as a cause for not responding to the complainant's email dated April 20, 2022.

During the above hearing and with the memorandum, reference number Γ/ΕΙΣ/176/11-01-2023, following the hearing, the respondent further elaborated on the claims he had previously made before the Authority and added, among other things, that the declared address pertained to the deceased and not to the complainant, while the reason for declaring his details was the requirement of the...

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**Tax Authorities for the declaration of the closest living relative of the deceased as a tax proxy-representative. Furthermore, it was stated that the disclosure of the tax identification number

(TIN) of the complainant did not cause any harm to the respondent, nor any benefit to himself, while any issues concerning the mandate and/or service provision contract with the deceased could raise civil claims and cannot establish liability due to a violation of personal data legislation.**

The Authority, after examining the elements of the file and what emerged from the hearing before it, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

****CONSIDERED IN ACCORDANCE WITH THE LAW****

1) **Since from the provisions of Articles 51 and 55 of Regulation 2016/679/EU (General Data Protection Regulation – hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 point (f) of the GDPR and 13 paragraph 1 point (g) of Law 4624/2019, it follows that the Authority has the competence to address the complaint of A against B, as the data controller, since the complaint under examination concerns non-automated processing (collection and use) of personal data, included in a filing system within the meaning of Article 4 points 2) and 6) of the GDPR. Therefore, it is a processing subject to the regulatory scope of Articles 2 paragraph 1 of the GDPR and 2 of Law 4624/2019.**

1 **For accountants as data controllers, see among others, European Data Protection Board, Guidelines 07/2020 on the concepts of the data controller and the processor in the GDPR, Version 2.0, July 7, 2021, pp. 17-18.**

2) **Since according to the provisions of Article 5 paragraph 1 of the GDPR regarding the principles that should govern the processing of data, personal data must, among other things, "a) be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), (...)". In order for personal data to be processed lawfully, that is, processed in accordance with the requirements of the GDPR, the conditions for the application and observance of the principles of Article 5 paragraph 1 of the GDPR must be cumulatively met. Furthermore, according to the provisions of Article 5 paragraph 2 of the GDPR, the data controller bears the responsibility and must be able to demonstrate compliance with the principles of processing established in paragraph 1 of Article 5. As the Authority has ruled, with the GDPR a new compliance model was adopted, the central element of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Moreover, the data controller is burdened with the further duty to demonstrate himself and at any time his compliance with the principles of Article 5 paragraph 1 of the GDPR.**

3) **Since furthermore, according to the provisions of Article 6 paragraph 1 of the GDPR regarding the lawfulness of processing: "1. Processing is lawful only if at least one of the following conditions applies: a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes, b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract, c) processing is necessary for compliance with a legal obligation to which the controller is subject.**

****Processing of Personal Data****

d) The processing is necessary for the protection of vital interests of the data subject or another natural person,

e) The processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller,

f) The processing is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child. The provision f) of the first paragraph does not apply to processing carried out by public authorities in the performance of their tasks.

According to Recital 39 of the GDPR, "Any processing of personal data should be lawful and fair (...)", while according to Recital 40 of the GDPR, "To be lawful, personal data must be processed on the basis of the consent of the data subject or on another legal basis provided for by law, either in this Regulation or in other Union or Member State legislation as referred to in this Regulation, including the need to comply with a legal obligation to which the data controller is subject or the need to perform a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract."

4) Since Article 15 of the GDPR states: "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, access to the personal data and the following information: (...) g) where the personal data has not been obtained from the data subject, any available information as to their source, (...)", while according to Article 12 paragraphs 3-4: "The data controller shall provide the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any event within one month of receipt of the request. This period may be extended by two further months where necessary, taking into account the complexity of the request and the number of requests. The data controller shall inform the data subject of any such extension within one month of receipt of the request, together with the reasons for the delay. If the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise. 4. If the data controller does not take action on the request of the data subject, the data controller shall inform the data subject without undue delay and at the latest within one month of receipt of the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

5) Since in this case, according to his claims, the respondent became aware of the name and VAT number of the complainant in the context of an instruction from the deceased client/father of the complainant for the preparation and submission of an income declaration and used them in this context, as the declaration of the details of a certain living relative of the deceased, as the representative of the deceased, was, according to his claims, mandatory for the submission of the declaration. It is noted that the alleged mandate contract was not submitted before the Authority, while it is taken into account that according to the provisions of the Civil Code 726, the mandate contract is terminated, unless otherwise specified, by the death of the mandator. Furthermore, no other service provision contract was submitted before the Authority that would document the existence of a contractual relationship between the respondent and the deceased client/father of the complainant regarding the submission of the contested declaration. Moreover, according to Article 67 of the Income Tax Code "Submission of the income tax declaration of natural persons and payment of the tax", paragraph 5 item c), as amended, "The person obliged to submit a declaration is: (...) c) in the case of...

6) Since, according to the above, a lack of compliance with the principle of legality as provided in Article 5(1)(a) of the GDPR and the conditions for lawful processing under Article 6(1) of the GDPR is established, and given that the fulfillment of the conditions for the application and adherence to the principles of Article 5(1) of the GDPR is cumulatively required for personal data to be lawfully processed, the examination of the fulfillment of the other principles of lawful processing of data based on Article 5 of the GDPR is unnecessary.

4 Supreme Court 1930/2009 (A'2 POL) "(...) The provision of Article 174 of the Civil Code constitutes a limitation of the principle of freedom of contracts, established by Article 361 of the Civil Code, and establishes the principle of the nullity of legal acts that contravene a prohibitory or imperative - public order - provision of any law, including criminal law. (...) " See also Court of Appeal of Thessaloniki 296/1994, Court of Appeal of Athens 14073/1988.

5 Court of Justice of the European Union, C-496/17, Deutsche Post AG v. Hauptzollamt Köln, January 16, 2019, para. 57.

**7) Furthermore, following his notification from the Tax Office ... of Athens regarding the submission

of the income tax return for the year 2020 on behalf of his deceased father, the complainant sent, through his attorney, an email on April 20, 2022, to the respondent in order to be informed about how his personal data came to the knowledge of the respondent, without receiving a response until June 27, 2022, when he received, through its notification from the respondent, the response to the Authority (ref. no. Authority G/EIS/8286/27-06-2022). It is noted that from the entirety of the case file and the hearing process before the Authority, as well as from the submitted memoranda, it appears that the respondent did not sufficiently document before the Authority the reasons for not responding to the above request for access by the complainant, in accordance with the principle of accountability, under Article 5(2) of the GDPR, especially considering that he became aware of the sending of the above request at least with the receipt of the document from the Authority with ref. no.

G/EKS/1303/30-05-2023 for the provision of clarifications, to which the examined complaint and all attached and supplementary documents are attached. Consequently, there is a finding of inadequate satisfaction of the complainant's right of access by the respondent responsible for processing, in violation of the provisions of Article 15 of the GDPR, in conjunction with the provisions of Article 12(3-4) of the GDPR.**

Following all the above, a violation by the respondent responsible for processing of the provisions of Articles 5(1)(a), 6(1), 12(3-4), and 15 of the GDPR, in conjunction with Article 5(2) of the GDPR, is established, and the Authority deems that in relation to the above-described violations, there is a case for exercising its corrective powers under Article 58(2) of the GDPR. Specifically, the Authority, by majority, considers that there is a case for imposing, in application of the provision of Article 58(2)(h) of the GDPR, an effective, proportionate, and deterrent administrative monetary fine, in accordance with the provisions of Article 83(3) and (5) of the GDPR, taking into account the reasoning.

148 GDPR, as well as the Guidelines of the Article 29 Working Party for the implementation and determination of administrative fines for the purposes of Regulation 2016/679 and the Guidelines 04/2022 for the calculation of administrative fines under the GDPR of the European Data Protection Board. However, in the opinion of one member of the composition, in relation to the violations described in detail above, there is a case for the application of the provision of Article 58(2)(b) GDPR, and the Authority should issue a reprimand to the data controller for the violation of the aforementioned provisions of the GDPR.

In assessing the data, in order to select the appropriate and corrective measure, the Authority, by majority, takes into account, based on the terms of Article 83(2) GDPR, the following elements:

- "the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered," therefore it is taken into account that this specific violation did not take on a broader character, while the complainant did not invoke or substantiate before the Authority any further material damage related to this violation (Article 83(2)(a) GDPR),
- "the intent or negligence that caused the infringement," therefore it is taken into account that this violation does not appear to be due to the intentional conduct of the complainant (Article 83(2)(b) GDPR).

FOR THESE REASONS

The Authority, unanimously, finds that the alleged act of processing constitutes a violation of Articles 5(1)(a), 6(1), 12(3-4), 15 GDPR and

a) imposes, by majority, for the violation of the provisions of Articles 5(1)(a) and 6 GDPR, pursuant to Article 58(2)(h) GDPR, on the data controller B a monetary fine of five hundred (500) euros,

b) imposes, by majority, for the violation of Articles 12(3-4) and 15 GDPR, pursuant to Article 58(2)(h) GDPR, on the data controller B a monetary fine of five hundred (500) euros,

for the reasons extensively analyzed in the reasoning of this decision.

The President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou